

Document Retention Checklist

6 steps • 9 min read • Available from the Launchpad plan

Knowing what to keep — and for how long — saves you from two opposite failures: throwing away records a regulator or auditor later asks for, and hoarding sensitive data you no longer have a lawful reason to hold. This playbook sets sensible minimum retention periods for a South African SME.

WHY IT MATTERS

- The Companies Act, tax legislation, and labour law each set their own minimum retention periods, and they do not all match.
- POPIA requires you to stop holding personal information once you no longer need it for the purpose it was collected — over-retention is itself a compliance risk.
- Clean, retrievable records are one of the first things reviewed in due diligence, CCMA disputes, and SARS audits.

Step-by-step

1

Inventory your record categories

Group records into company/statutory, tax and financial, employment, and customer/commercial categories.

2

Set statutory retention periods

As a working baseline: company statutory records for the life of the company, tax records for five years from the relevant tax year, and employment records for a minimum of three years after termination — confirm current thresholds for your specific record types.

3

Set commercial retention periods

Contracts and commercial records are commonly kept for the contract term plus the relevant prescription period so you retain evidence for as long as a claim could arise.

4

Run the Records Retention Policy wizard

Turn the categories and periods above into one written policy your team can follow without asking you every time.

5

Set a review and disposal cadence

Schedule an annual review to flag records past their retention period for secure disposal, particularly personal information you no longer need.

File the policy and disposal log in the Company Snapshot

Keep the policy itself, plus a log of what has been disposed of and when, as evidence that disposal was deliberate and compliant — not accidental data loss.

Quick checklist

- Record categories inventoried
- Statutory retention periods set per category
- Commercial retention periods set with prescription in mind
- Written Records Retention Policy generated
- Annual review and disposal cadence scheduled
- Disposal log filed in the Company Snapshot

RELATED WIZARDS — JUMP STRAIGHT IN

→ **Records Retention Policy**

This playbook is general guidance for South African startups and SMEs and is not a substitute for advice on your specific circumstances. Run the linked wizards on The StartUp Legal platform to generate, negotiate, and e-sign the actual documents — each completed run produces a receiver-grade document, a full evidence pack, and an update to your Company Snapshot.